



ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය

අති විශේෂ

The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2161/35 - 2020 පෙබරවාරි මස 07 වැනි සිකුරාදා - 2020.02.07
No. 2161/35 - FRIDAY, FEBRUARY 07, 2020

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

L.D.B. - 104/44(v)

TRUSTS ORDINANCE (CHAPTER 87)

REGULATIONS made by the Minister of Justice, Human Rights and Legal Reforms under Section 115A read with Section 6A and Section 19A of the Trusts Ordinance (Chapter 87).

NIMAL SIRIPALA DE SILVA,
Minister of Justice, Human Rights
and Legal Reforms.

Colombo,
29th January, 2020.

Regulations

The Trusts (Information Relating to Express Trusts) Regulations 2019 published in *Gazette Extraordinary* No. 2108/10 of January 28, 2019 are hereby amended as follows :

- (1) in paragraph (a) of sub-regulation (1) of regulation 4, by the substitution for the words “the instrument of trust, for registration ; and ” of the words, “the instrument of trust ; and ”;
- (2) by the insertion immediately after regulation 4, of the following new regulation which shall have effect as regulation 4A of those Regulations :-



“4A. (1) Upon receipt of the information specified in Schedule III forwarded by a trustee in relation to an express trust under Regulation 4, the Registrar of Lands shall forward such information to the District Secretary of the area within which the trust property is situated for the purpose of -

- (a) verifying such information ; and
 - (b) ascertaining whether the creation of the trust contravenes any provisions of any written law.
- (2) The District Secretary shall cause the information specified in Schedule III to be verified and ascertained through the Divisional Secretary of the relevant Divisional Secretary's Division with the assistance of the Grama Niladhari of the area within which the trust property is situated.
- (3) The Divisional Secretary shall conduct such inspections, examinations or enquiries as may be necessary for the purposes specified in paragraph (a) and (b) of sub-regulation (1), and forward his report to the District Secretary for making his observations on the relevant express trust.
- (4) Upon receipt of the report under sub-regulation (3), the District Secretary shall forward his observations in relation to such trust to the Registrar of Lands, who shall refer such observations to the Registrar General.
- (5) Where the Registrar - General is satisfied, based on the observations received by him under sub-regulation (4) that -
- (a) such express trust may be lawfully registered, the Registrar - General shall direct the Registrar of Lands to register such trust ; or
 - (b) there is sufficient grounds to suspect that any aspect of such trust contravenes any provision of any written law, the Registrar - General shall refer all information relating to such trust to relevant law enforcement agencies for necessary action. ” ;
- (3) in Sub-regulation (1) of regulation 5, by substitution for the words and the figure “express trusts received under Regulation 4.” of the words and the figure “express trusts registered under Regulation 4A.”